



British Transport Docks Act 1971

CHAPTER lix

ARRANGEMENT OF SECTIONS

PART I

Section PRELIMINARY

1. Short title.
2. Division of Act into Parts.
3. Interpretation.
4. Incorporation of Acts.
5. Application of Part I of Compulsory Purchase Act 1965.

PART II

LANDS

6. Power to acquire lands.
7. Incorporation of provisions of Acts of 1964, 1967 and 1969 relating to lands.

PART III

Section

WORKS, ETC.

8. Power to make works.
9. Power to dredge in Humber.
10. Work No. 2 to be within petty sessional division of Barton on Humber and parish of South Killingholme.
11. Transfer of powers, etc., relating to South Killingholme Jetty.
12. Limits of Board's dock master's jurisdiction at Alexandra and Victoria Docks at Kingston upon Hull.
13. Limits of Board's dock master's jurisdiction at Immingham.
14. Works to form part of undertaking.
15. Application of byelaws of Board.
16. Permanent lights on works.
17. Incorporation of provisions of Acts of 1964, 1966 and 1969 relating to works.

PART IV

PORT TALBOT HARBOUR

18. Interpretation of Part IV.
19. Extension of dock and harbour master's jurisdiction and of limits of harbour.
20. Application to approach channel area of explosives and petroleum spirit byelaws.
21. Marking tidal harbour and approach channel.
22. Restriction on navigation in approach channel area.
23. Amendment of section 32 of Act of 1964.

PART V

PROTECTIVE PROVISIONS

24. Incorporation of protective provisions of Act of 1966.
25. Extension of article 26 of South Killingholme Jetty Empowerment Order 1968.
26. For protection of Humber Bridge Board.

PART VI

MISCELLANEOUS AND GENERAL

27. Amendment of section 3 of Southampton Harbour Act 1939.
28. Saving for Town and Country Planning Acts.

Section

- 29. Saving for Harbours Act 1964.
- 30. Saving for Wireless Telegraphy Act 1949.
- 31. Saving for Merchant Shipping Act 1894.
- 32. Arbitration.
- 33. Costs of Act.

SCHEDULE:

Part I—Provisions of South Killingholme Jetty Empowerment Order 1968 referred to in subsection (2) of section 11 (Transfer of powers, etc., relating to South Killingholme Jetty) of this Act.

Part II—Provisions of South Killingholme Jetty Empowerment Order 1968 repealed.

ELIZABETH II



1971 CHAPTER lix

An Act to empower the British Transport Docks Board to construct works and to acquire lands; to confer further powers on the Board; and for other purposes.

[5th August 1971]

WHEREAS by the Transport Act 1962 the British Transport Docks Board (in this Act referred to as "the Board") were established:

1962 c. 46.

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide, to such extent as they may think expedient, port facilities at the harbours owned or managed by the Board and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them and the Board are empowered to operate the harbours owned or managed by them:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the county council of the county and the town clerk of the county borough within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

- Short title.** 1. This Act may be cited as the British Transport Docks Act 1971.
- Division of Act into Parts.** 2. This Act is divided into Parts as follows:—
- Part I.—Preliminary.
 - Part II.—Lands.
 - Part III.—Works, etc.
 - Part IV.—Port Talbot Harbour.
 - Part V.—Protective provisions.
 - Part VI.—Miscellaneous and general.
- Interpretation.** 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—
- “ the Act of 1847 ” means the Harbours, Docks and Piers
Clauses Act 1847;
- 1847 c. 27.

PART I
—cont.

- “ the Act of 1964 ” means the British Transport Docks Act 1964;
- “ the Act of 1966 ” means the British Transport Docks Act 1966;
- “ the Act of 1967 ” means the British Transport Docks Act 1967;
- “ the Act of 1969 ” means the British Transport Docks Act 1969;
- “ the Board ” means the British Transport Docks Board;
- “ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;
- “ land ” includes any estate or interest in land and land covered by water;
- “ the level of high water ” means the level of mean high-water springs;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ tidal work ” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of high water;
- “ Trinity House ” means the corporation of Trinity House of Deptford Strond;
- “ the undertaking ” means the undertaking of the Board as authorised from time to time;
- “ vessel ” has the meaning assigned to it in section 3 (Interpretation) of the Act of 1966;
- “ the works ” means the works authorised by Part III (Works, etc.) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All areas, bearings, directions, distances, lengths and widths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such area, bearing, direction, distance, length and width.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

PART I
—cont.
Incorporation
of Acts.

1845 c. 20.

4.—(1) The following enactments, so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with this Act:—

- (a) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to mines lying under or near the railway:

Provided that—

(i) for the purposes of the said incorporated provisions with respect to the temporary occupation of lands near the railway during the construction thereof, the works shall be deemed to be the railway and the centre line of each work as shown on the deposited plans shall be deemed to be the centre of the railway and for the words “the period by the special Act limited for the completion of the railway” there shall be substituted the words “the period of five years from the commencement of the construction of any of the works authorised by the special Act”;

1923 c. 20.

(ii) for the purposes of the said incorporated provisions with respect to mines lying under or near the railway, the works shall be deemed to be the railway and, for the purposes of section 78 of the said Act of 1845 (as amended by the Mines (Working Facilities and Support) Act 1923) in so far as it relates to the works, the area of protection shall, as regards mines and minerals lying within 565 feet of the surface of the ground or the bed of the river Humber, be 400 feet and, as regards mines and minerals lying at a greater depth than 565 feet below the said surface, the area of protection shall be increased by 60 feet for every 100 feet or part thereof by which the mines and minerals lie deeper below the said surface than 565 feet;

- (b) the provisions of the Act of 1847 (except sections 6 to 9, 11 to 13, 16 to 23, 25, 26, 33, 49, 50, 79, 80, 84 to 90, 94, 95, 97 and 98):

Provided that—

(i) the expression “the harbour, dock, or pier” where used in the said incorporated provisions means, in relation to Work No. 1 and Work No. 2, those respective works;

(ii) the expression “the harbour master” where used in the said incorporated provisions means, in

relation to Work No. 1, the Board's dock master at Alexandra and Victoria Docks at Kingston upon Hull, and in relation to Work No. 2, the Board's dock master at Immingham;

(iii) the meaning of the word "vessel" as defined in this Act shall be substituted for the meaning assigned to it by section 3 of the Act of 1847;

(iv) the exception from incorporation of the provisions of section 33 of the Act of 1847 shall not be deemed to affect the application of that section to so much of the approach channel area (as defined in section 18 (Interpretation of Part IV) of this Act) as is outside the limits of the harbour (as so defined);

(v) section 52 of the Act of 1847 shall extend to empower the harbour master to give directions prohibiting the mooring of vessels within a distance of 300 yards of Work No. 1 or within a distance of 200 yards of Work No. 2;

(vi) section 53 of the Act of 1847 shall not be construed as requiring the harbour master to serve upon the master of a vessel a notice in writing of his directions but such directions may be given orally or otherwise communicated to such master:

Provided that a notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before which any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

(2) In the construction of the enactments so incorporated with this Act, the expression "special Act" shall be read as a reference to this Act and the expression "company" shall mean the Board.

5.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4, 24 (5) and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

Application
of Part I of
Compulsory
Purchase
Act 1965.
1965 c. 56.
1946 c. 49.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving

PART I
—cont.

not less than fourteen days' notice) as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

LANDS

Power to
acquire lands.

6.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to the undertaking.

(2) The powers of the Board for the compulsory acquisition of land under this section shall cease after the expiration of three years from 31st December 1971.

(3) The Board shall not under the powers of this section acquire such part of the property delineated on the deposited plans and described in the deposited book of reference and therein numbered 3 in the parish of South Killingholme in the rural district of Glanford Brigg as consists of the jetty approach described in the South Killingholme Jetty Empowerment Order 1968.

Incorporation
of provisions
of Acts of
1964, 1967
and 1969
relating
to lands.

7. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1964—

Section 6 (Correction of errors in deposited plans and book of reference):

The Act of 1967—

Section 8 (Power to acquire easements only):

The Act of 1969—

Section 8 (Disregard of recent improvements and interests);

Section 9 (Extinction of private rights of way):

Provided that the provisions of the said section 8 of the Act of 1967, as so incorporated, shall have effect as if for the words "section 6 (Power to acquire lands) of this Act" there were substituted the words "section 6 (Power to acquire lands) of the British Transport Docks Act 1971".

PART III

WORKS, ETC.

8.—(1) Subject to the provisions of this Act, the Board may, ^{Power to} in the lines and situations and upon the lands delineated on the ^{make works.} deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the city and county of Kingston upon Hull—

Work No. 1—A jetty of open construction commencing (Jetty at Hull). on the river wall of the north bank of the river Humber at a point 200 yards east of the westerly termination of the entrance jetty on the east side of the entrance channel from the river Humber to Victoria Dock and extending into the river Humber in a southerly direction for a distance of 123 yards, with bridges, dolphins and connecting catwalks at the jetty head, providing two berths for vessels.

On the bed of the river Humber adjoining the parish of South Killingholme in the rural district of Glanford Brigg in the county of Lincoln, Parts of Lindsey—

Work No. 2—A jetty of open construction, being an (Jetty at extension of the jetty head constructed by the National Coal Board at South Killingholme as Work No. 2 ^{South Killingholme).} authorised by the South Killingholme Jetty Empowerment Order 1968, commencing by a junction with the north-western end of the said jetty head and extending into the river Humber in a north-westerly direction for a distance of 200 yards and there terminating.

(2) Subject to the provisions of this Act, the Board may within the limits of deviation from time to time extend, enlarge, alter, replace or relay temporarily or permanently the works.

9.—(1) The Board may, from time to time, deepen, dredge, ^{Power to} scour, cleanse, alter and improve the bed, shores and channels of ^{dredge in} the river Humber adjoining or near to the works for the purpose of affording uninterrupted means of access thereto and may as they think fit use, appropriate or dispose of the materials from time to time taken up or collected by them from the river Humber in the course of any such operations:

PART III
—cont.

Provided that—

(a) no such materials shall be either—

(i) deposited below the level of high water except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Secretary of State for Trade and Industry; or

(ii) laid down or deposited in any place or manner such as to cover any subaqueous cable belonging to or used by the Post Office or to impede in any way the inspection, maintenance, removal or renewal of any such cable;

(b) the Board shall consult with the Yorkshire River Authority before depositing any such materials as aforesaid below the level of high water in any area not approved or prescribed by the Secretary of State for Trade and Industry or his predecessors before the passing of this Act as an authorised deposit ground.

(2) As early as possible, and in any event not less than twenty-eight days, before any exercise of their powers under this section within a distance of 50 yards of any subaqueous cable belonging to or used by the Post Office, the Board shall give notice in writing to the Post Office of such intended exercise.

Work No. 2
to be within
petty sessional
division of
Barton on
Humber and
parish of
South
Killingholme.

10. Work No. 2 shall be deemed to be within the area of the petty sessional division of Barton on Humber in the county of Lincoln, Parts of Lindsey and the parish of South Killingholme in the rural district of Glanford Brigg in the said county.

Transfer of
powers, etc.,
relating to
South
Killingholme
Jetty.

11.—(1) In this section—

“ the Coal Board ” means the National Coal Board;

“ the day of transfer ” means the day on which ownership of the jetty is transferred by the Coal Board to the Board or the date of the passing of this Act, whichever is the later;

“ Immingham Dock ” means the harbour of Immingham transferred to and vested in the Board by the Transport Act 1962;

“ the jetty ” means the jetty approach and jetty head constructed or to be constructed by the Coal Board as Works Nos. 1 and 2 authorised by the Order of 1968; and

“ the Order of 1968 ” means the South Killingholme Jetty Empowerment Order 1968.

1962 c. 46.

(2) On the day of transfer the powers, rights and duties conferred or imposed on the Coal Board by the Order of 1968 shall be

transferred from the Coal Board to the Board and the Order of 1968 shall accordingly have effect subject to any necessary modifications and to the provisions of subsection (3) of this section as if in the provisions of the Order of 1968 specified in Part I of the Schedule to this Act—

PART III
—cont.

(a) for any reference to the Coal Board (however worded and whether express or implied) there were substituted a reference to the Board, and for any reference to the N.C.B. harbour master (however worded and whether express or implied) there were substituted a reference to the Board's dock master at Immingham Dock; and

(b) any reference (however worded and whether express or implied) to any officer or any servant of the Coal Board were a reference to the officer or servant of the Board who corresponds as nearly as may be to the first-mentioned officer or servant.

(3) As from the day of transfer the provisions of the Order of 1968 specified in Part II of the Schedule to this Act are hereby repealed.

(4) As from the day of transfer the jetty shall for all purposes form part of the undertaking and the Ninth Schedule to the Transport Act 1962 shall have effect as if the harbours specified in paragraph 2 of the said schedule as vesting in the Board included the jetty. 1962 c. 46.

(5) (a) All byelaws, rules and regulations of the Coal Board in force within the limits of the N.C.B. harbour master's jurisdiction as prescribed by article 21 of the Order of 1968 immediately before the day of transfer shall, unless the Board shall otherwise determine and have posted notice of the effect of such determination in a conspicuous place on the jetty, be deemed to apply after the day of transfer and may be enforced by the Board accordingly until such time as new byelaws, rules and regulations shall be made by the Board and come into operation.

(b) If no byelaws, rules or regulations are in force on the day of transfer or if the Board determine in accordance with paragraph (a) of this subsection that some or all of such byelaws, rules and regulations shall not apply, the byelaws, rules and regulations for the time being in force at Immingham Dock shall, unless the Board shall otherwise determine, apply within the limits as aforesaid and may be enforced by the Board accordingly.

12. The limits within which the powers of the Board's dock master at Alexandra and Victoria Docks in relation to Work No. 1 may be exercised under and subject to the provisions of the Act of 1847, as incorporated with this Act, shall extend to a distance of 300 yards in every direction from Work No. 1.

Limits of Board's dock master's jurisdiction at Alexandra and Victoria Docks at Kingston upon Hull.

PART III
—*cont.*

Limits of
Board's dock
master's
jurisdiction at
Immingham.

13. The limits within which the powers of the Board's dock master at Immingham may be exercised under and subject to the provisions of the Act of 1847, as incorporated with this Act, shall extend to a distance of 200 yards in every direction from Work No. 2.

Works to
form part of
undertaking.

14. The works shall for all purposes form part of the undertaking.

Application
of byelaws
of Board.

15.—(1) All byelaws, rules and regulations of the Board in force at Alexandra and Victoria Docks at Kingston upon Hull immediately before the passing of this Act shall, unless the Board shall otherwise determine, be deemed to apply to Work No. 1 and may be enforced by the Board accordingly until such time as new byelaws, rules or regulations relating to Work No. 1 shall be made by the Board and come into operation.

(2) All byelaws, rules and regulations for the time being in force at the jetty referred to in section 11 (Transfer of powers, etc., relating to South Killingholme Jetty) shall, unless the Board shall otherwise determine, be deemed to apply to Work No. 2 and may be enforced by the Board accordingly.

Permanent
lights on
works.

16.—(1) After the completion of a tidal work the Board shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as Trinity House shall from time to time direct.

(2) If the Board fail to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Incorporation
of provisions
of Acts of
1964, 1966
and 1969
relating
to works.

17.—(1) The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1964—

Section 30 (Fine for obstructing works):

The Act of 1966—

Section 9 (Subsidiary works);

Section 10 (Power to deviate);

Section 21 (Tidal works not to be executed without approval of Board of Trade);

Section 23 (Abatement of works abandoned or decayed);

PART III
—cont.

Section 24 (Survey of tidal works); and

Section 26 (Lights on tidal works during construction):

The Act of 1969—

Section 17 (Provision against danger to navigation):

Provided that—

(a) the provisions of the said section 9, as so incorporated, shall have effect as if in the proviso to subsection (1) the words after “those works” were omitted;

(b) the provisions of the said section 23, as so incorporated, shall have effect as if—

(i) after the words “Board of Trade” in every case where those words occur there were inserted the words “or the Lincolnshire River Authority”; and

(ii) after subsection (2) there were inserted the following subsection:—

“(2A) If there shall be any inconsistency between a requirement of the Board of Trade and a requirement of the Lincolnshire River Authority under this section, the requirement of the Board of Trade shall prevail.”;

(c) the provisions of the said section 24, as so incorporated, shall have effect as if after the words “Board of Trade” in each case where those words occur there were inserted the words “or the Lincolnshire River Authority”.

(2) Any reference in the said incorporated provisions to “the works” or to a “tidal work” shall be construed as a reference to “the works” or to a “tidal work” as defined in section 3 (Interpretation) of this Act.

(3) Notwithstanding anything in the said section 9 of the Act of 1966, as so incorporated, the Board shall not—

(a) use any telegraphic line belonging to or used by the Post Office; or

(b) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

1878 c. 76.

(4) In this section “alter” and “telegraphic line” have the same meanings as in the Telegraph Act 1878.

PART IV

PORT TALBOT HARBOUR

Interpretation
of Part IV.

1899 c. cxcix.

18. In this Part of this Act—

“the Act of 1899” means the Port Talbot Railway and Docks Act 1899;

“the approach channel” means the deep water approach channel to the tidal harbour dredged under the powers conferred on the Board by section 17 (Power to dredge Port Talbot and harbour approaches) of the Act of 1964 and identified by means of two parallel lines of buoys 650 feet apart;

“the approach channel area” means the area outside the tidal harbour bounded by an imaginary line commencing at a point on the main breakwater of the tidal harbour 1,459 feet from its seaward end and from there drawn on a bearing of 240 degrees true (that is to say, parallel to the centre line) for a distance of 10,184 feet, thence on a bearing of 330 degrees true (that is to say, at right angles to the centre line) for a distance of 4,000 feet, thence on a bearing of 060 degrees true (that is to say, parallel to the centre line) for a distance of 8,086 feet to the point at which latitude 51 degrees 34 minutes 40 seconds north intersects longitude 3 degrees 49 minutes 40 seconds west and thence on a bearing of 073 degrees true to the point on the foot of the South Pier Lighthouse at which latitude 51 degrees 34 minutes 51 seconds north intersects longitude 3 degrees 48 minutes 42 seconds west;

“the centre line” means an imaginary line commencing at the point on the foot of the forward leading light near the dock and harbour master’s office at Port Talbot at which latitude 51 degrees 34 minutes 53 seconds north intersects longitude 3 degrees 47 minutes 58 seconds west and drawn on a bearing of 240 degrees true for a distance of 2.35 nautical miles;

1962 c. 46.

“the harbour” means the harbour of Port Talbot transferred to and vested in the Board by the Transport Act 1962;

“the tidal harbour” means the water area comprised within the harbour formed by the works constructed by the Board as Works Nos. 1 and 2 of the Act of 1964.

Extension of
dock and
harbour
master’s
jurisdiction
and of limits
of harbour.

19. The limits within which the powers of the Board’s dock and harbour master at Port Talbot may be exercised under and subject to the provisions of the Act of 1847, as incorporated with

the Act of 1964, shall extend to include the approach channel area and the limits of the harbour as defined in section 23 (Existing limits of Harbour) of the Act of 1899 are hereby extended to include so much of the approach channel area as is outside such limits.

PART IV
—cont.

20. All byelaws made under the Explosives Act 1875 or the Petroleum (Consolidation) Act 1928 and for the time being in force in the harbour shall be deemed to apply to the approach channel area and may be enforced by the Board accordingly.

Application to approach channel area of explosives and petroleum spirit byelaws.
1875 c. 17.
1928 c. 32.

21.—(1) The Board may provide, place and erect inside or outside the tidal harbour and the approach channel in such places as they deem proper, lightships, lighthouses, buoys, beacons, guiding posts or signs for the guidance of vessels proceeding to or from the tidal harbour.

Marking tidal harbour and approach channel.

(2) The Board may maintain and repair any lightships, lighthouses, buoys, beacons, guiding posts or signs provided and erected by them under subsection (1) of this section.

(3) The Board shall have the powers and be subject to the duties of a local lighthouse authority as set out in Part XI of the Merchant Shipping Act 1894.

1894 c. 60.

(4) Section 29 (Marking approaches to tidal harbour) of the Act of 1964 is hereby repealed.

22.—(1) Notwithstanding anything in the Collision Regulations (Ships and Seaplanes on the Water) and Signals of Distress (Ships) Order 1965, or in any other enactment, any vessel proceeding by way of the approach channel to or from the tidal harbour which by reason of draught is unable to navigate outside such channel (in this section referred to as a “deep draught vessel”) and any vessel of the Board or hired by the Board engaged in dredging or sounding operations in the approach channel area (in this section referred to as a “dredging or sounding vessel”) shall not, if it is exhibiting the prescribed signals, be required to keep out of the way of any other vessel within the approach channel area and such other vessel shall keep out of the way of any deep draught vessel or dredging or sounding vessel.

Restriction on navigation in approach channel area.

(2) No vessel shall proceed to or from the tidal harbour along the approach channel except under the direction and control of the Board's dock and harbour master at Port Talbot and unless there are exhibited appropriate signals that the vessel may so proceed.

PART IV
—cont.

(3) (a) A deep draught vessel when under way shall display the prescribed signals in addition to the lights required in rule 2 (a) (i), (ii), (iv) and (v) and rule 10 (a) of the International Regulations for Preventing Collisions at Sea as scheduled to the said Order of 1965, and in the same circumstances.

(b) A dredging or sounding vessel shall display the prescribed signals in lieu of the lights required in rule 2 (a) (i) and (ii) and rule 7 (a) (i) of the said regulations when under way; and in addition to the lights and daymarks required in rule 11 (a), (b) and (c) of the said regulations when at anchor.

(4) In this section “the prescribed signals” means—

(a) in relation to a deep draught vessel—

(i) three red lights in a vertical line one over the other so that the upper and lower lights shall be the same distance from and not less than 6 feet above or below the middle light, such lights to be carried where they can best be seen and visible all round the horizon at a distance of at least 2 miles; or

(ii) by day, a black cylinder of not less than 2 feet in diameter and of not less than 3 feet 6 inches in height, such cylinder to be carried where it can best be seen; or

(b) in relation to a dredging or sounding vessel—

(i) three lights in a vertical line one above the other so that the upper and lower lights shall be the same distance from, and not less than 6 feet above and below, the middle light; the highest and lowest of these lights shall be red, and the middle light shall be white, and they shall be of such character as to be visible all round the horizon at a distance of at least 2 miles; or

(ii) by day, three shapes each not less than 2 feet in diameter, of which the highest and lowest shall be globular in shape and red in colour, and the middle one diamond in shape and white, carried in a vertical line one above the other not less than 6 feet apart, where they can best be seen.

Amendment
of section 32
of Act of 1964.

23. Paragraph (a) of section 32 (Application of byelaws of Board) of the Act of 1964 shall have effect as if the words “unless the Board shall otherwise determine” were inserted after the word “shall”.

PART V

PROTECTIVE PROVISIONS

24. The following provisions of the Act of 1966 are incorporated with, and form part of this Part of, this Act:—

Section 30 (Crown rights); and

Section 37 (Saving for Humber Bridge Act 1959).

Incorporation of protective provisions of Act of 1966.

1959 c. xlii.

25.—(1) Article 26 (For protection of the river authority) of the South Killingholme Jetty Empowerment Order 1968 (as applied to the Board by section 11 (Transfer of powers, etc., relating to South Killingholme Jetty) of this Act) shall extend and apply to Work No. 2 and any necessary works and conveniences connected therewith as it applies to the jetty (as defined in the said section 11) but subject to the following modifications:—

Extension of article 26 of South Killingholme Jetty Empowerment Order 1968.

(a) in paragraph (1) for the reference to the works there shall be substituted a reference to Work No. 2, for the reference to article 11 (Subsidiary works) there shall be substituted a reference to section 9 (Subsidiary works) of the Act of 1966 and for the reference to article 8 there shall be substituted a reference to subsection (2) of section 8 (Power to make works) of this Act;

(b) paragraph (ii) of the proviso to subparagraph (a) of paragraph (2) shall be omitted;

(c) in paragraph (5) for the reference to article 15 (Tidal works not to be executed without approval of Board of Trade) there shall be substituted a reference to section 21 (Tidal works not to be executed without approval of Board of Trade) of the Act of 1966;

(d) in paragraph (6) for the reference to article 12 (Power to dredge) there shall be substituted a reference to section 9 (Power to dredge in Humber) of this Act;

(e) in paragraph (11) for the reference to article 12 there shall be substituted a reference to section 9 (Power to dredge in Humber) of this Act.

(2) References in this section to provisions of the Act of 1966 shall be construed as references to those provisions as incorporated with this Act by section 17 (Incorporation of provisions of Acts of 1964, 1966 and 1969 relating to works) of this Act.

26. The Humber Bridge Board shall not be liable to the Board for any interference with or damage to the works caused by the construction, maintenance, repair, alteration or renewal of the bridge and other works authorised by the Humber Bridge Act

For protection of Humber Bridge Board.

PART V
—cont.

1959 c. lxvi.

1959 except in any case in which such interference or damage was due to or was caused by any negligent act or default on the part of the Humber Bridge Board or any of their officers or servants or contractors.

PART VI

MISCELLANEOUS AND GENERAL

Amendment
of section 3 of
Southampton
Harbour
Act 1939.
1939 c. lxxxiii.
1968 c. 59.

27. Section 3 (Meaning of “harbour master” and “vessel”) of the Southampton Harbour Act 1939 shall have effect as if at the end of the definition of “vessel” and “ship” in subsection (1) there were inserted the words “and any hovercraft as defined in section 4 of the Hovercraft Act 1968”.

Saving for
Town and
Country
Planning
Acts.
1962 c. 38.

28.—(1) Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that Session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

(2) Subject to the provisions of subsection (3) of this section, in their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1963 (which permit development authorised by Private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within ten years after the passing of this Act.

(3) Such of the works authorised by subsection (1) of section 9 (Subsidiary works) of the Act of 1966, as incorporated with this Act, as are not tidal works and are not carried out within twelve months of the completion of Works Nos. 1 and 2, shall not be deemed to be development falling within Class XII in Schedule 1 to the Town and Country Planning General Development Order 1963.

(4) In this section any reference to article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1963 includes a reference to corresponding

provisions of any general order superseding that Order made under section 14 of the Town and Country Planning Act 1962 or any corresponding provision of an Act repealing that section.

PART VI
—cont.

1962 c. 38.

29. Nothing in this Act shall be taken as exempting the Board from the provisions of sections 9 and 10 of the Harbours Act 1964 in relation to the works.

Saving for
Harbours
Act 1964.

1964 c. 40.

30. Nothing in this Act shall entitle or oblige the Board to install or use apparatus for wireless telegraphy as defined in the Wireless Telegraphy Act 1949 in contravention of the provisions of that Act.

Saving for
Wireless
Telegraphy
Act 1949.

1949 c. 54.

31. Nothing in this Act shall be taken as exempting any person or body from the provisions of Part XI of the Merchant Shipping Act 1894.

Saving for
Merchant
Shipping
Act 1894.

1894 c. 60.

32. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Arbitration.
1965 c. 56.

33. All costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

Costs of Act.

Section 11.

SCHEDULE

PART I

PROVISIONS OF SOUTH KILLINGHOLME JETTY EMPOWERMENT
ORDER 1968 REFERRED TO IN SUBSECTION (2) OF SECTION 11 (TRANSFER
OF POWERS, ETC., RELATING TO SOUTH KILLINGHOLME JETTY) OF
THIS ACT

- Article 3 (Incorporation of Clauses Acts);
- Article 4 (Compulsory purchase of land);
- Article 5 (Power to acquire easements only);
- Article 6 (Power to enter for survey or valuation);
- Article 7 (Extinction of private rights of way);
- Article 8 (Power to construct, etc., works);
- Article 10 (Period for completion of works);
- Article 11 (Subsidiary works);
- Article 12 (Power to dredge);
- Article 13 (Power to deviate);
- Article 14 (Fine for obstructing works);
- Article 15 (Tidal works not to be executed without approval of
Board of Trade);
- Article 16 (Provision against danger to navigation);
- Article 17 (Abatement of works abandoned or decayed);
- Article 18 (Survey of tidal works);
- Article 19 (Lights on tidal works during construction);
- Article 20 (Permanent lights on tidal works);
- Article 21 (Limits of N.C.B. harbour master's jurisdiction);
- Paragraphs (1) and (2) of Article 23 (Power to Board to make
byelaws);
- Article 26 (For protection of the river authority);
- Article 27 (For protection of the bridge board);
- Article 29 (Crown rights).

PART II

PROVISIONS OF SOUTH KILLINGHOLME JETTY EMPOWERMENT
ORDER 1968 REPEALED

- Article 22 (Power to make charges);
- Paragraphs (3) and (4) of Article 23 (Power to make byelaws);
- Article 25 (For protection of the conservancy board);
- Article 28 (For protection of the docks board).

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